

ON WINGS OF CHANGE:
THE NISGA'A FINAL AGREEMENT

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PROLOGUE

Present-day issues surrounding Aboriginal title and rights invariably include histories pregnant with broken promises, social and cultural degradation, and the misapplication of sovereign authority. The story below unfolds in a framework intended to roughly approximate that of the *Rime of the Ancient Mariner*, by Samuel Taylor Coleridge, and attempts to capture the essence of events leading up to the *Nisga'a Final Agreement* in 2000. My intention is not to perpetuate cultural hegemony, a method too often implemented in colonial relationships, but rather to reverse this practice – with all due respect to Mr. Coleridge's epic and enduring poem – by taking a classically English form of art, and rendering it an instrument for acknowledgment and even celebration of an Aboriginal story. I undertake to do this by narrating through the eyes and voice of a fictional treaty commissioner, sent to Nisga'a territory by the British Columbian government in a bid to facilitate treaty negotiations between the Nisga'a, Canada and BC. Whilst there, he is introduced to a culture far more complex than he had previously appreciated, and is left to contemplate his purpose there in the quiet woods along the Nass River. Feeling abandoned, he prepares to march indignantly back to the village when he is waylaid by the Nisga'a spirit bird, a sacred animal in Nisga'a lore, which guides him on an historical journey through the past, revealing a record of betrayal and loss. While he had been instructed by the province to negotiate terms favourable to its own interests, he cannot help but see the people at the negotiation table through new eyes, and so endeavour to assist an equitable agreement in which the Nisga'a desire for acknowledgment and entitlement to self-determination are fulfilled with dignity and fairness.

While not a perfect treaty – if such a thing exists – the *Nisga'a Final Agreement* arose out of resilience, enduring hope, monumental efforts to rebuild trust, and a willingness to compromise amongst all parties. I write this poem as a celebration of this achievement, and apologize for omitting countless other noteworthy individuals, events, and efforts, in the interest of limiting length. Indeed, a project such as this one could go on and on, and so I have endeavoured to keep it close to the Nisga'a experience, so much as I might presume to apprehend it.

ON WINGS OF CHANGE: **THE NISGA'A FINAL AGREEMENT**

PART I: THE MISSION

I clutched my case and set my face
Against the steely cold,
Crouched off the plane to stand again
And do as I was told.

My mission clear I turned my ear
To listen to the props
Their choppy whirl and spinning blur
Sprayed sharp and misty drops.

A smallish place of rugged grace
Terrace,¹ it was dubbed
The airport though seen from below,
A questionable hub.

Ushered inside I met the guide
Who gladly shook my hand
And brought along a lively throng
Of others from the Band.²

Their welcome was a cheerful buzz
That stirred my shame the more
I braced my heart to play the part
I'd been commissioned for.

We caravanned toward their land
A crowded friendly hour,
The windows misted as they listed
Every family bower.³

¹ Terrace is a small town in Midwestern British Columbia with a population of approximately 12,000 people.

² The Nisga'a people reside in villages dotting the banks of the Nass River, on lands previously allocated as reserves, but which were dissolved under the Nisga'a Final Agreement and absorbed into the designated Nisga'a Lands.

³ The Nisga'a are comprised of four large family groups sharing common heritage: (1) Laghkepo, represented by the wolf and having as its subdivisions the Brown-bear, Crow, Crane, and Red-wing flicker; (2) Laghkeak, represented by the Eagle and having as its subdivisions the Beaver, Owl, Dog-fish, and Squirrel; (3) Kanhadda, represented by the Raven and having as its subdivisions the Frog, Sea-lion, Sculpin, and Star-fish; (4) Kishpootwada, represented by the Killer-whale and having as its subdivisions the Osprey and the Bear-under-water. Online: Quebec History <<http://faculty.marianopolis.edu/c.belanger/quebechistory/encyclopedia/NiskaIndians.htm>>.

All too soon beneath the moon
We stopped before a hall,
Their chatter gay did fade way
To heed a keening call.

We fast alit and entered it
Through crafted cedar planks,⁴
And once inside my trusty guide
Reported to the ranks.

“We bring the man,” he told the Band,
“Who will negotiate.
But first we’ll eat and get some sleep
Tomorrow we’ll debate.”

The night went on, into the dawn
And when the sun appeared.
I stirred alive much bleary eyed
To dread the work that neared.

That day we toured the valley verde
Astonished by its beauty
The banks and trees, the fish and leaves
Their care the People’s duty.

The lava fields whose pumice yields
Are built into the village,
Break the land with blackened hand,
A starkly naked image.

Whilst on this trek a tiny speck
Was following our group –
I barely caught its plumèd spot
As it would dip and swoop.

Soon we passed the mighty Nass
And strode among the trees;
“Old growth cedar,” said our leader,
Bending at the knees.

⁴ Cedar comprised the main building staple, as well as base material for clothing and other items, online: Wikipedia <<http://en.wikipedia.org/wiki/Nisga'a#Houses>>.

He found a twig with greenish sprig
And showed me what he meant:
I broke its bark, the reddish mark
Erupting pungent scent.

Lithely he rose and touched his nose
Acknowledging my wonder.
Then suddenly he said to me,
“The village is just yonder.”

I was to stay then make my way
Once I’d cleared my head!
His crinkled eyes, acute and wise
Had gleaned my buried dread.

He left me there to stand and stare
At his departing back.
The morning waned as sunlight strained
Along its westward track.

I’d pause a while, then walk the mile
And tell them I was ready.
I felt spurned but when I turned
My steps were not so steady.

Somewhat confused I briefly mused,
Perhaps there was foul play?
But quickly knew this wasn’t true
And sat down anyway.

When next to me on fallen tree,
Alit a wee brown bird.⁵
No timid friend its voice did lend
An unexpected word.

“You’ve come,” it said, “a figurehead
To lead the Nation poorly.
But if you win the war you’re in
Nisga’a will suffer sorely.”

I spun around upon the sound
Assuming someone there.
But all that stirred remained the bird
Its echoes on the air.

⁵ The spirit bird is part of Nisga’a lore, online: Canadian Museum of Civilization
<<http://www.civilization.ca/cmc/exhibitions/aborig/storytel/nisgleng.shtml>>.

I sprang away without delay
And stared into its eye,
It cocked its head and gently said
To listen by and by.

While it sang its message rang
Across our species gulf,
I never heard a spirit bird
And shrank into myself.

The yarn it wove adeptly drove
Its message to the core,
The spirit bird, though barely stirred,
Entranced me all the more.

It then regaled its somber tale
Despite my quiet pleas.
It started at the first contact
And drew me in with ease.

PART II: HEAR YE, HEAR YE

The Royal we of sixty-three⁶
Attempting to inspire
Did little more than nudge the door
To feed the colonial fire.

In they poured a motley hoard,
Both French and Anglophone,
Declaring theirs all lands and wares
Belonging to the Throne.

The naughty boys of Illinois,
Whose greed would not relent
Did covet lands for veterans⁷
And thus wrought precedent.

⁶ *The Royal Proclamation* (1763), issued by King George III of England on October 7, 1763, on the heels of France's surrender to England all land in Canada, online: The Solon Law Archive <http://www.solon.org/Constitutions/Canada/English/PreConfederation/rp_1763.html>.

⁷ *Johnson v. M'Intosh* [21 U.S. 8 (Wheat.) 543 (1823)].

The Iroquois in English law
Ceased to command respect
Unwitting pawns in courtly cons
No salve for their neglect.

Indeed to fight required a right
Endowed by special license.⁸
The Crown withheld as anger swelled
And none could launch an offense.

A gnarly tale of such betrayal
Would stir the most sanguine,
But if unless it will impress,
'Tis scuttled by design.

Thus demeaned – *the wee bird preened* –
They'd lost their strength and voice.
And very soon, their rights so hewn,
Did lose their power of choice.

I raised a hand and made demand
The bird forestall its tale.
I frankly swore I'd hear no more
Of its lamenting wail.

But on it spoke the impish bloke!
And I no way to stop it,
Just sat there dumb and growing numb
To aught but the wee poppet.

Now all the while with fervent guile
Engaging faith and wits,
Who set about to nurture doubt?
The wily Jesuits.

⁸ Legislation introduced in 1927 required registered Indians to obtain special license from the Province prior to raising funds for legal action, online: Assembly of First Nations <<http://www.afn.ca/article.asp?id=59>>. Section 141 required,

Every person who, without the consent of the Superintendent General expressed in writing, receives, obtains, solicits or requests from any Indian any payment or contribution or promise of any payment or contribution for the purpose of raising a fund or providing money for the prosecution of any claim which the Tribe or Band of Indians to which such Indian belongs, or of which he is a Member, has or is represented to have for the recovery of any claim or money for the said Tribe or Band, shall be guilty of an offense and liable upon summary conviction for each such offence to a penalty not exceeding two hundred dollars and not less than fifty dollars or to imprisonment for a term not exceeding two months.

Online: Daniel N. Paul <<http://www.danielpaul.com/IndianAct-1876.html>>.

They did abhor the Mother lore,
So deeply ran their loathing,
They sidled in beneath the din,
Red wolves in Our Lamb's clothing.

Soon was sketched the heathen wretch,
His culture on the block.
The women told they were too bold
And *men* would mind the flock.⁹

Thus began the 'rise of man'
And women bade to bend,
To reconcile the Christian wile
And see the natives blend.

Meanwhile the Crown was cracking down
Upon the Francophones,
And forcing Bands to play their hands,
Did use them tooth and bone.

The English won,¹⁰ or so say some,
Perhaps the Indians not.
Peace and Friendship¹¹ from the Kingship
All too soon forgot.

Westward spread the settlers' stead,
Eyes wide with avarice.
Yet with their goods came through the woods
A devastating virus.¹²

At this I leapt as though I'd slept
And terrified awoke,
I begged it cease its horrid piece
But on the wee bird spoke.

⁹ *Report of the Royal Commission on Aboriginal Peoples*, vol. 4:2 (Ottawa: Canada Communication Group, 1996), states that, "[i]t has been noted that the Jesuits, steeped in a culture of patriarchy, complained about the lack of male control over Aboriginal women and set out to change that relationship." ("RCAP")

¹⁰ The Royal Proclamation of 1763 was issued on the heels of France's capitulation to English sovereignty over Canada in 1760, online: The Canadian Islamic Congress <<http://www.mail-archive.com/islam-net1@yahoogroups.com/msg00257.html>>.

¹¹ Peace and Friendship treaties were signed throughout the 18th Century as both England and France attempted to form cooperative relationships with Aboriginal inhabitants, online: Indian and Northern Affairs Canada <<http://www.ainc-inac.gc.ca/al/hts/tng/ecn/pft/index-eng.asp>>. ("INAC")

¹² C. Stuart Houston and Stan Houston, "The first smallpox epidemic on the Canadian Plains: In the fur-traders' words," (2000) 11:2 *Canadian Journal of Infectious Diseases*. The smallpox epidemic that ravaged First Nations in 1781 and 1872 saw immeasurable suffering and loss amongst Aboriginal families and communities.

It seemed to note my clenching throat
So took a different angle,
It wove instead another thread
Into the seething tangle.

It bears remark that some embarked
To start a better life.
Not all who came are thus to blame
For propagating strife.

But like a flock who only walk
Another's charted path,
They dare not stray too far away
Or earn their master's wrath.

And so they trod beneath the rod
Of monarch's stringent rule,
The willful blind would nary find
Their King was harsh or cruel.

Laws were crafted, quickly drafted,
Meaning to correct;
Their scope was broad but deeply flawed
For failing to protect.

The Crown had meant to some extent,
As seen in eighteen-fifty,¹³
To leave the Bands their rightful lands
But soon the King grew shifty.

None to soon they changed their tune
And statutory foil:
Acts soon revised to enfranchise¹⁴
Stripped Indians of their soil.

¹³ *An Act for the protection of the Indians in Upper Canada from imposition, and the property occupied or enjoyed by them from trespass and injury* (S.C. 1850, Ch. 74).

¹⁴ *An Act to Encourage the gradual Civilization of the Indian Tribes in the Province and to amend the Laws respecting Indians* (S. Prov. C. 1857, 20 Vict., c. 26). Upon reaching the age of 21 years, a male Indian who met specific criteria for enfranchisement would lose his Indian status, registration, and access to reserve lands. So, too, would his wife, regardless of her heritage, and their children.

PART III: CHANGING HANDS

Westminster¹⁵ came and changed the game,
Thus Canada was sworn;
A proper state it could negate
The rights of its firstborn.

And so it did and promptly rid
Its promise to the Indian.
Assimilate and subjugate:
Doctrine of the Christian.¹⁶

Ensuing Acts did thus detract
Hunting rights and title,
Reserving lands for Indian Bands
But these a meager trifle.

I bobbed my head in weary dread
And begged the lesson cease,
“The hour grows late and you berate
My senses with your piece!

Expected on the village yon
I must decline your tale!”
The spirit bird ignored my words
And blithely did regale.

Shortly thence there did commence
Some national petitions,
Their mandate clear: they sought an ear
To put right past omissions.

Frank Calder¹⁷ brought an action wrought
To see their claim distinguished.
The lower courts, without remorse,
Found title was extinguished.

¹⁵ The Statute of Westminster (22 & 23 Geo. V c. 4, 11 December 1931) granted legislative equality to the dominions of the British Empire, thus rendering Canada an independent state with its own government and high court.

¹⁶ *An Act for the gradual enfranchisement of Indians, the better management of Indian affairs, and to extend the provisions of the Act 31st Victoria, Chapter 42* (S.C. 1869, c. 6, 32-33 Vict.). Any status Indian woman who ‘married out’ – who married a non-Indian man – instantly lost her status, and the status of any future children from that marriage.

¹⁷ *Calder et al. v. Attorney-General of British Columbia*, [1973] S.C.R. 313.

The S.C.C., in seventy-three
Considered foreign judgments,¹⁸
Including back to Royal pacts
And Proclamatory parchments.

Thus the Court found just support,
O'erruled those harsh decisions.
Instead it found the claim was sound
Thus mending past divisions.

Another suit for Native loot
Came from the Dene folk,
Whose northern lands in southern hands
Alarm and wrath invoked.

Crown sent a man – non-Indian –
Commissioned from aloft,
And Berger¹⁹ found that Dene ground
Should not be parceled off.

Soon their culture saw a fracture
As the Dene split;
Some had mettle, some would settle
On a treaty kit.

As other Bands voiced their demands
And agents offered less,
The government did thus ferment
A stultifying process.

Frustration swelled and so compelled
The Bands to alter tack:
In quick reply their battle cry
Moved to the legal track.

Hence in court they sought support
By way of lawful orders;
But oft the Crown would loudly drown
The voices of the elders.

¹⁸ In *Calder*, the SCC made reference to the 1946 decision in *United States v. Alcea Band of Tillamooks* ((1946), 329 U.S. 40), in which the court recognized that the “Indians had a legal as well as a just claim to the territory they occupied,” at p. 386.

¹⁹ The Berger Commission, led by Thomas Berger from 1974-1977, inquired into the McKenzie River Pipeline project proposed to span northern Alaska, the Yukon, NWT, BC, Alberta, and further south and east; the pipeline would have transected Dene traditional territory, online: CBC Archives <http://archives.cbc.ca/politics/rights_freedoms/topics/295/>.

Despite the service of an earnest
Crombie at the helm,²⁰
The drafted Bill continued still
Unfairness through the realm.²¹

The government would not relent
'Til the United Nations²²
Called them out and casted doubt
Upon its paltry rations.

The *Indian Act*²³ was thus transact
Attempting to redress
Its policies of lawful seize
And abrogate distress.

On its heels came mass appeals
Asserting lands were vital,
And Delgamuukw²⁴ did made them look
At aboriginal title.

The Gitksan action but a fraction
Of the Indian plight –
They claimed they dwelled on lands they held
Before the Crown set sight.

The trial judge did much begrudge
The plaintiff's oral form,
And favoured more the written score
To which B.C. conformed.²⁵

But in a move that would improve
The standing of the claimant,
The upper court ruled for import
Of elders' oral statements.

²⁰ Then-Minister of Indian Affairs, David Crombie.

²¹ Bill C-31, which was passed by the House and Senate in 1982, became the new *Indian Act* 1985, and was intended to eradicate discrimination on the basis of sex from the 1951 *Indian Act*; however, section 6 continued to discriminate against Aboriginal women by creating a sort of sub-class of female status-holders who were unable to pass status along to their children and grandchildren. *McIvor v. Canada (Registrar of Indian and Northern Affairs)*, 2009 BCCA 153, is the most recent case calling for amendment to these offending provisions.

²² The United Nations began to criticize Canada for its discriminatory policies through such instruments as Committee for Discrimination Against Women.

²³ *Indian Act*, R.S., 1985, c. I-5.

²⁴ *Delgamuukw v. British Columbia* (1997) 3 S.C.R. 1010.

²⁵ *Ibid.*, headnotes, p. 3.

Despite ground gained the court remained
Unwilling to decide.
Yet Gitxsan's claim would garner fame,
Inspiring native pride.

In some despair I stopped it here,
Imploring it to end,
“‘Tis getting late, the light abates
And I've a deal to tend.”

Alas my pleas did not appease
Its storytelling rapture.
And only spurred the little bird
On to another chapter.

As it sang on the tale was drawn
‘Round its ominous locus.
When suddenly the rustling trees
Bestirred in soft susurrus.

A wind arose that would expose
The changing social climate,
And show the past is not steadfast
But cultures run the gamut.

PART IV: WINDS OF CHANGE

The Gitxsan claim had garnered fame,
The province bade to listen.
It would cater two years later
And launch a new Commission.²⁶

They'd started late out of the gate,
Were far behind the race.
Few agreements flowed from treatments
Based on past disgrace.

Not meant to press for past redress,
A rule not meant for brooking,
The B.C.T.C.²⁷ held succinctly:
‘Twas strictly forward-looking.

²⁶ The British Columbia Treaty Commission was established in 1992 by Canada, BC, and the First Nations Summit, online: BC Treaty Commission <http://www.bctreaty.net/files/about_us.php>. (“B.C.T.C.”)

²⁷ *Ibid.*

The role it plays is to liaise,
According to its mandate.
So perforce it launched its course,
No treaty would it backdate.

Five per cent was all it meant
To grant as territory,
And in exchange it would estrange
Bands' prior tax-free glory.

The spirit bird, with careful words
Then quietly intoned,
“Now here we stand, upon the land
The Nisga’a call their own.”²⁸

The governments will not assent
To all the Nisga’a name.
What will you do to help construe
The rightness of their claim?”

At this I balked, for I was locked
Into a neutral role;
My hands were tied to merely guide,
Agreement was the goal.

The spirit bird at this demurred,
Insisting I was able
To facilitate *and* advocate
At the bargain table.

The wind was gusting, needles dusting
Down upon us both,
The bird took flight in fading light
Soaring above the growth.

Just as it had fast alit,
It disappeared from sight.
In its stead its echo pled
To do what I thought right.

²⁸ While the Nisga’a originally claimed approximately 24,000 square kilometers as their traditional territory, they reduced this claim to 1,992 square kilometers during negotiations with BC and Canada with the assistance from the B.C.T.C.

The wind did blow, the moon did glow,
The hours had swiftly passed,
Yet there I stood between the wood
Amid the shadows cast.

The village yon a place whereon
Three interests would converge,
If they beheld distrust dispelled
A treaty would emerge.

All night I pondered as I wandered
Through the brooding forest:
Who should take the richest stake
And who would take the poorest?

Then at dawn, the night begone,
I strode into the village;
Duty ready, conscience steady,
To avert a pillage.

Soon they came to much acclaim,
The others from INAC.²⁹
If the outcome was not welcome
They'd not be coming back.

PART V: BALANCING ACT

The Nisga'a Chief began in brief
By setting out their goals:
An equal chance to help advance
Their economic growth.³⁰

He stated clearly they held dearly
Self-determination;
To realize their family ties,
Develop as a nation;

²⁹ Indian and Northern Affairs Canada.

³⁰ Joseph Gosnell, Sr., President of the Nisga'a Tribal Council, stated the *Nisga'a Land Question: A generation of Nisga'a men and women has grown old at the negotiating table* pamphlet, that "[w]hat we seek is simple and straightforward. We want to negotiate our way into the economy – not take it over." [no publication date]

A special clause for making laws
In line with Nisga'a values;
Language rights³¹ and burial sites
Were all within their purview.

INAC grappled with the passel
Mainly over lands:
Minerals and fossil fuels
Belong in the Crown's hands.³²

The Council balked and almost walked –
A nearly tragic move –
But then I heard the spirit bird,
Its tone a soft reprove.

"Now is the time," it kindly chimed,
"To step into your role.
Douse the fire of rising ire
And aide the parties' goal."

At once I knew its words rang true,
We must find ground to draft it;
Though long inured to harm endured
A text was finally crafted.

Nisga'a Lands in Nisga'a hands –
The rest they had to cede –
Appendices³³ would render these
Inalienable deed.

Their laws would stand across their land,
Along with B.C. statutes;
This new franchise would harmonize,
But for the rare dispute –

To the extent the conflict went
The province would prevail.³⁴
Or alternate to this upset
Was Parliament's detail.

³¹ *Nisga'a Final Agreement*, Ch. 2, s. 7 guarantees culture and language rights. ("*NFA*")

³² The provincial Crown retains mineral rights to all fee simple titles in the province; the *NFA* changed this treatment of ownership and granted the Nisga'a full mineral rights under Ch. 3, s. 19: "For greater certainty, in accordance with paragraph 3, on the effective date the Nisga'a Nation owns all mineral resources on or under Nisga'a Lands."

³³ *NFA*, *supra* note 28, Ch. 3, s. 2 allocates 1,992 square kilometers, more or less, of land in the lower Nass Valley to the Nisga'a. The Appendices contain additional allocations of reserve and other lands.

³⁴ *Ibid.*, Ch. 2, s. 13.

They must commit to so permit
The public leisure access;
Provided care is given there
To all the Nisga'a assets.³⁵

Upon agreement with that easement
And the other systems,
What followed next was careful text:
Establish Nisga'a Lisims.³⁶

I saw the Chiefs in their beliefs
Rebuild a shattered trust,
And in that light dispel the fight,
Pursuing what was just.

My wonder grew as Nisga'a threw
Their hearts into the fray;
No pity begged for deals reneged,
Instead they offered leeway.

Through it all I heard the call
To see this mission through;
The spirit bird, in quiet words
Had told me what to do.

The final terms contained the germ
Of freedom to self-govern,
And in the passage of the package
Laid a novel pattern.

PART VI: FLY AWAY HOME

The agents sought to stir the pot
And compromise demands;
The Nisga'a urged that trust emerge
Between the parties' hands.

³⁵ *Ibid.*, Ch. 6, s. 2 requires that the "Nisga'a Lisims Government will allow reasonable public access to and onto Nisga'a Public Lands for temporary non-commercial and recreational uses," but limits this by excluding commercial, harvesting, or otherwise damaging activities.

³⁶ Nisga'a Lisims Government.

In their dictum, Nisga'a Lisims
Revealed their stance with tact.
In due course all did endorse
The signing of the pact.

Talks wrapped up and all did sup
Within the cedar hall;
We celebrated new conflated
Interests one and all.

Conclusions found on common ground,
A potlatch did ensue;
To celebrate this landmark date
Of forming bonds anew.

In the end the Band would send
The government away,
With gratitude for hope accrued
Through mutual essay.

Was it the best that they could get?
Perhaps it was that day.
Not every clause had met applause
But others held cachet.

Future Bands could set their hands
To drafting like instruments –
Negotiate to generate
Their own in-house governments.

In the end it would depend
Upon the Nisga'a story:
Would they thrive and thus revive
Their Nation's prior glory?

As we'd been versed, this was the first
Agreement of its kind.
And no immurement by mistreatment
Changed the Nisga'a mind.

Some days later the creators
Of the draft Agreement,
Vigor quelled, we bade farewell
Out on the runway pavement.

Quietly we took our leave
And boarded on the plane,
When next we meet, the lands escheat
Back to the Nisga'a reign.

As we lifted, something flitted
O'er the metal wing;
As we rose it did suppose
To track our rapid rising.

The spirit bird had long suffered,
To witness Nisga'a plight;
But fresh winds blow and let us know
How we can do what's right.

The very essence of its presence
Filled my thoughts until,
I knew I'd heard the spirit bird,
Its message ringing still.

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